

SENATE No. 2505

The Commonwealth of Massachusetts

PRESENTED BY:

Peter J. Durant

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the dissolution of the Holmes Park Water District.

PETITION OF:

NAME:

DISTRICT/ADDRESS:

Peter J. Durant

Worcester and Hampshire

Kimberly N. Ferguson

1st Worcester

SENATE No. 2505

By Mr. Durant, a petition (accompanied by bill, Senate, No. 2505) (subject to Joint Rule 9) of Peter J. Durant and Kimberly N. Ferguson (by vote of the town) for legislation relative to the dissolution of the Holmes Park Water District. Municipalities and Regional Government.
[Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the dissolution of the Holmes Park Water District.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Except as expressly provided below, chapter 788 of the acts of 1963 is
2 hereby repealed.

3 SECTION 2. As of the effective date of this act, the town of Westminster shall assume
4 the rights, duties and responsibilities formerly held by the Holmes Park Water District to supply
5 water to inhabitants within the boundaries of said former District for all purposes set forth in
6 chapter 788 of the acts of 1963. All infrastructure, equipment, facilities, funds, assets, liabilities
7 and property of the District shall be assumed by the town of Westminster, and said infrastructure
8 shall become part of the town's water supply system under the care, custody and control of the
9 town's public works commission.

10 SECTION 3. As of the effective date of this act, any rates, taxes or other charges due and
11 owing to said District by any inhabitants of said District shall become due and payable to the

12 town of Westminster. The town, by and through its public works commission, shall have all legal
13 rights of enforcement and collection of such rates, taxes and charges.

14 SECTION 4. Any funds held by the District as of the effective date of this act shall be
15 transferred to the custody and control of the town of Westminster. Such funds shall be used first
16 to pay any and all debts of the District. Any excess funds shall be credited to the town's water
17 enterprise fund established under section 53F1/2 of chapter 44 and shall be used for purposes of
18 said enterprise.

19 SECTION 5. This act shall take effect upon its passage.